

This update is pursuant to a court order dated September 19, 2019 directing the social worker to provide supervised visits between the Respondent and his minor child for a maximum of 4 hours a week 4 times a week.

Around September 18th I received a phone call from Mr. Steve Russell, father of “Evie” Walsh informing me that I was appointed by the court to provide him with supervised visits. I told him I was not aware of the appointment and had received no court order directing me to provide the service. I went on to inform him that once the order was received, I would contact him to start the process. On September 19th I received a text message from Tara Walsh, mother of “Evie” informing me that at a recent court appearance I had been appointed to provide supervised visits between her daughter and Mr. Russell. I informed her that I had not been officially appointed and therefore could not start supervision until I received the order. We did agree to meet in White Plains, near the fountain in anticipation of the receipt of the order. I met Ms. Walsh and “Evie” at the Starbucks and we proceeded to walk to Barnes and Nobles on Main Street. We discussed the parameters of the visits and Ms. Walsh provide a very brief overview of why supervision was needed/ requested. At this point I still do not have a copy of the order or any specifics from the party’s attorneys. Ms. Walsh and I agreed that I would pick up “Evie” from her home in Chappaqua, NY and transport her to the visit with her father. We tentatively agreed on three (3) dates and times the first being Saturday, September 21 from 4 to 7:30pm pending receipt of the court’s order. Later that day I received a copy of an unsigned order indicating that I would supervise visits between Mr. Russell and “Evie”. Subsequent to receiving that order I received two more orders both of which were signed and stated the same parameters as the unsigned one. I then contacted both parents to confirm the arrangements for Saturday, September 21st.

I arrived at Ms. Walsh's home at 3:45pm and was permitted through the large electronic iron gate at the bottom of the driveway. Upon my arrival a gentleman came outside to inquire as to my purpose on the property. I asked for Ms. Walsh and was told she wasn't there. I returned to my car to call me Ms. Walsh to find out where she and "Evie" were. Once I informed the gentleman of my name and purpose, he acknowledged that he was Mr. Walsh (MGF) and escorted me into the home. Here I was introduced to Mrs. Walsh (MGM) and an older sister. They explained that Tara and "Evie" were out and would be returning shortly. Ms. Walsh and "Evie" came through the door at about 4:10 explaining they had been to a party in Harlem. Ms. Walsh changed "Evie's" pants, repacked her to go bag and we departed to meet Mr. Russell at the KittleHouse, a short drive away.

This visit started with "Evie" being a little distressed when we arrived at the Kittle House as she had not seen her father for quite some time and it took a moment for her recognize who he was. Mr. Russell also had the dog, Milly, which "Evie" recognized and became more comfortable as he spoke to her. We headed for the visit and both dad and "Evie" seemed to have a happy time. Mr. Russell had toys, food, water and milk for "Evie" to consume during the visit. She moved easily between the toys, dad's lap and Milly, who found a place on the couch. The visit ended at 6:45 as we prepared to return to mom's home. Mr. Russell washed "Evie's" hands and face, changed her pamper and clothes and we departed by 7pm. Mr. Russell and "Evie" took their seats in the back of my car and we arrived back at the Kittle House where I was going to drop Mr. Russell off and then go on to Evie's home for 7:30pm as pre-arranged. Mr. Russell initially asked to be left at the Kittle House, but Evie became upset when he exited the car, so I told him to accompany me to the drop off. It had gotten dark and this area did not have any street lights I asked Mr. Russell to accompany us for the return trip. Mr. Russell had informed me that there was an OP which precluded him from entering the Walsh property. He asked that I drop him off at the road away from the house to avoid any risk of confrontation and I agreed. As we approached mom's residence there was a

traffic issue making access to their street difficult. As I entered Whippoorwill Street, I let Mr. Russell out in the "public street" which connects two adjoining properties to the main road. We pulled just off the road at the turnout area, parked and stopped away from the gate which lead to the Walsh home. As we stopped, Mr. Russell and I both notice a car parked on the grass among the bushes. Entering the roadway, I noticed a dark car parked behind the bushes on the right side with blacked out windows and no lights on. Mr. Russell and I thought the car was that of the Walshes there to pick up Evie as had been the previous arrangement. I stopped the car, got out as Mr. Russell unbuckled Evie, collected her from him and started toward the car. As I walked toward the vehicle someone yelled out the window "Who are you?" I thought the person was Mr. Walsh (MGF) meeting me to collect "Evie". I approached the car the window was slightly lowered and I was only able to see the person's face from the nose up and noticed there was another man in the car on the passenger side, as well. The person didn't declare who they were and only asked who was in the car with me. I immediately stepped back still carrying "Evie" and her to go bag. Caught off guard by this person I replied "my husband" out of fear. Both men were wearing dark clothing and still didn't declare who they were or why they were questioning me. Their voices were becoming more aggressive and menacing with each question and I was becoming more alarmed. I was standing in the road, carrying Evie, her bag and two strangers were becoming verbally intimidating. I hastily retreated to my car very rattled with "Evie", placed her on the passenger front seat and drove quickly toward the gate which was opening. At this point Mr. Russell had exited the vehicle and was standing by the main road when I passed the Walsh gate onto their private road. I returned "Evie" to her mother, gave her a very brief update of the visit and left for home very unnerved. Mr. Russell was waiting for me in the street/roadway where I had left him. He inquired as to my well-being and I told him that I had never experienced such shear fright as what I had just gone through. Later that evening I received a text from Ms. Walsh asking me who else was in the car and that Mr. Russell was not to be on the property. I was too anxious

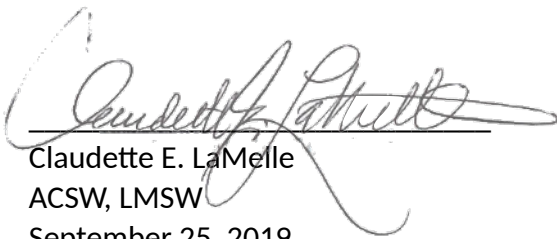
from the earlier encounter to respond. As a Black woman I was rightfully unnerved by the confrontation which had just occurred by two unknown white men sitting in a darkened car screaming threatening questions from inside the car at me.

On Monday morning, September 23rd I received a call from Mr. Guttridge, Ms. Walsh's attorney, informing me that his client had complained about my supervision of the visit and having Mr. Russell in the car when I returned Evie. I attempted to explain that he did not enter the property and was left off in the public street/roadway. Mr. Guttridge took exception to that explanation and then informed me that I was removed from the case because I had violated the court order. When I attempted to explain the order didn't specify Mr. Russell could not be in the car, I ended the call.

On Tuesday afternoon, September 24th, I received a call from Det. Bruno of the Chappaqua Police Department seeking my statement regarding the incident from the previous Saturday evening. I provided him with the same account as I have detailed in this report.

I have provided a map of the area in order to clarify what the dynamics of the situation were.

Respectfully submitted by:



Claudette E. LaMelle
ACSW, LMSW
September 25, 2019

Under penalty of perjury and the laws of NY and CA,
I affirm that the foregoing is true and correct.

